



DEFENSE LOGISTICS AGENCY
ENERGY AEROSPACE
1525 WURTSMITH STREET, BLDG 5730
JBSA-LACKLAND, TX 78236

<25-0014>

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
FOR FURNITURE
25 March 2025

1. Summary/Introduction:

The Defense Logistics Agency (DLA) Aerospace Energy Business Unit has a base procurement to purchase additional office furniture for [REDACTED]. Delivery lead time is 90 days after the date of award. The estimated dollar amount for the one-time procurement is \$170,000.00. The statutory authority cited for Other Than Full and Open Competition is 10 U.S.C. §3204(a)(1), Only One Responsible Source.

2. Nature and/or description of the action being approved (FAR 6.303-2(b)(2)):

A one-time purchase order will be the result of this action to procure furniture needed to add workspaces and improve functionality of the office environment for [REDACTED] employees.

DLA Energy, Aerospace organization manages the worldwide acquisition of missile fuels, liquid propellants for space launch and satellites, aviator's breathing oxygen and other bulk industrial chemicals and gases – including nitrogen, oxygen, argon, hydrogen, and helium. Aerospace Energy workforce provides centralized, cradle-to-grave contracting and logistics support via aggregation of customer requirements and award of government contracts for supplies and services that support customers worldwide, ranging from those in theater – helium to aerostats, aviator breathing oxygen to fighter jets, and hydrazine to the F16s for their emergency power unit – to those in the continental U.S. – Defense Department, space launch, cruise missiles, Homeland Security and NASA, as well as federally funded research and development at universities.

[REDACTED] was the initial interior designer for the [REDACTED] and will supply the add-on office furniture requirement.

3. Description of supplies or services required to meet the agency's need (including estimated value) (FAR 6.303-2(b)(3)):

The furniture acquisition includes custom office equipment such as workstations, storage, seating, tables, and privacy screens totaling a dollar value of \$170,000.00. There are no National Stock Numbers (NSNs) for the brand name furniture items and therefore will be purchased under one generic material stock number or Local Stock Number (LSN), 7110-N20000154. The quantity of the LSN is for 1 PR package and the quoted total price will include F.O.B. Destination prices for all items to be delivered to [REDACTED]. The contractor is responsible for the delivery and installation of the furniture. Per FAR 2.101, the office furniture are sole source part number items readily available and sold in the commercial marketplace that will be customized to match the existing furniture and tailored to fit the office building design/layout. Same catalog pricing for the office furniture is available to the general public.

4. Identification of the statutory authority permitting other than full and open competition (FAR 6.303-2(b)(4)):

This J&A is based upon the authority of 10 U.S.C. §3204(a)(1), as implemented by Federal Acquisition Regulation 6.302-1. The required furniture to be awarded is based on the acceptance of an unsolicited interior design (research) proposal available from only one source, [REDACTED] whose drawings demonstrate concepts that are unique and innovative.

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited (FAR 6.303-2(b)(5)):

[REDACTED], Fort Worth District procured the existing furniture for [REDACTED] facility under a design-bid-build construction contract, [REDACTED] awarded to [REDACTED]. Since [REDACTED] is unable to modify their contract due to agency restrictions, [REDACTED] will acquire the additional items through a separate internal base contract. The requirement for the office furniture can only be sourced from the previous contractor, [REDACTED], a corporate furnishings and interior design dealer for manufacturer, [REDACTED]. The interior design firm also has access to the building layout and has prepared both the initial and revised floor plans for the office. Drawings provided by [REDACTED] cannot be duplicated or publicized without the company's written consent.

6. Description of the efforts made to ensure that offers are/were solicited from as many potential sources as is/was practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies (FAR 6.303-2(b)(6)):

The Contracting Officer need not submit notice (synopsis) pursuant to FAR 5.202 Exception (a)(8). It is determined that the proposed contract action will result from the acceptance of an unsolicited proposal for additional custom furniture and drawings that demonstrate unique interior design concepts. Publication of any notice complying with FAR 5.207 to synopsize, would improperly disclose the originality of thought or innovativeness of the proposed design or would disclose proprietary information associated with the proposal.

7. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable (FAR 6.303-2(b)(7)):

DLA Energy Aerospace Contracting Officer will ensure the anticipated cost to the Government will be fair and reasonable based on price analysis conducted in accordance with FAR 15.404-1(b)(2) section (iv) comparison with competitive published price lists. The Contracting Officer will utilize the total price of \$170,000.00 that was determined using current catalog pricing from corporate furniture manufacturers [REDACTED]. The office furniture are commercial items; therefore, cost and pricing data will not be obtained. DLA Energy Aerospace will ensure that the anticipated cost to the Government will be fair and reasonable based on recent price analysis comparison to catalog price listings.

8. Description of the market research conducted and the results or a statement of the reason market research was not conducted (FAR 6.303-2(b)(8)):

Market research was conducted through GSA advantage and other commercial websites to find similar furniture items but none of the products found were comparable in quality and durability to the existing furnishings or fit the design layout of the office building.

9. Any other facts supporting the use of other than full and open competition, such as (FAR 6.303-2(b)(9)):

(i) Explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available.

Not applicable.

(ii) When 6.302-1 is cited for follow-on acquisitions as described in 6.302-1(a)(2)(ii), an estimate of the cost to the Government that would be duplicated and how the estimate was derived.

Not applicable.

(iii) When 6.302-2 is cited, estimated cost, or other rationale as to the extent and nature of the harm to the Government.

Not applicable.

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition (FAR 6.303-2(b)(10)):

Not Applicable.

11. Actions that may be taken to remove or overcome barriers to competition before any subsequent acquisition for the supplies or services are required (FAR 6.303-2(b)(11)):

No other option is available.

I hereby certify that the data which forms the basis for this justification is accurate and complete to the best of my knowledge and belief.

KELLEY MAULDIN
Contracting Officer